



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 15 1993

DOT-E 10948

1. Stolt-Nielsen, Incorporated, Perth Amboy, New Jersey, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a combustible liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the one-time shipment of a combustible liquid in a DOT Specification 111A100W1 tank car with a leaking bottom outlet valve flange, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Stolt-Nielsen, Incorporated's application of January 12, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Combustible liquid, n.o.s. (dipropylene glycol methyl ether), classed as a combustible liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Combustible liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.29(c)(1).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 111A100W1 tank car, GATX 300711, with a leaking bottom outlet valve flange valve which has been equipped with a Chlorine "C" Kit.

8. SPECIAL PROVISIONS.

a. Shipment must be between Stolt-Nielsen, Incorporated, Perth Amboy, New Jersey, and Rescar, Incorporated, Dubois, Pennsylvania, a distance of approximately 334 miles, using the most direct route available via Consolidated Rail Corporation.

b. Tank car tank must be unloaded to the maximum extent practicable.

c. Tank cars must be marked "DOT-E 10948" in four inch letters on a contrasting background above the DOT specification number.

d. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

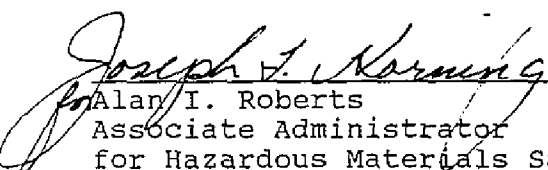
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, SW
Washington, DC 20590
(202) 366-9178 or 366-0549

e. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. February 15, 1993.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 15 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.